

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
VINCENT CARR,

Plaintiff,

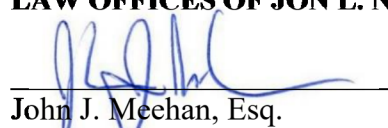
-against-

Index No.
Plaintiff designates
NEW YORK COUNTY
as the place of trialTHE CITY OF NEW YORK, DETECTIVE PAUL RIVERA
Shield No.: 1283, Individually and in His Official Capacity,
UNDERCOVER POLICE OFFICER NO. C0084, and P.O.s
"JOHN DOE" # 1-10, Individually and in Their Official Capacities,
(the name John Doe being fictitious, as the true names are presently
unknown),**SUMMONS**The basis of this
venue is where the
incident aroseDefendants.
-----X

TO THE ABOVE-NAMED DEFENDANT(S):

- The City of New York – 100 Church Street, NY, NY 10007
- Detective Paul Rivera – NYPD - 1 Police Plaza Path, NY, NY 10007
- Undercover Police Officer No. C0084 - NYPD - 1 Police Plaza Path, NY, NY 10007

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 2, 2019**LAW OFFICES OF JON L. NORINSBERG**

John J. Meehan, Esq.
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
Tel.: (212) 791-5396
Fax: (212) 791-5396

Defendant(s)' Address:

The City of New York
100 Church Street
New York, NY 10007

Detective Paul Rivera
New York City Police Department
1 Police Plaza Path
New York, NY 10007

Undercover Police Officer No. C0084
New York City Police Department
1 Police Plaza Path
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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VINCENT CARR,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE PAUL RIVERA
Shield No.: 1283, Individually and in His Official Capacity,
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“JOHN DOE” # 1-10, Individually and in Their Official Capacities,
(the name John Doe being fictitious, as the true names are presently
unknown),

Defendants.
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COMPLAINT

Plaintiff designates New York County as the Venue of this action, as New York County is the location where the incident arose.

Plaintiff, VINCENT CARR, by his attorneys, Jon L. Norinsberg, PLLC, complaining of the
Defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also brings this action for violation of his rights under New York State law.

PARTIES

2. Plaintiff is an African-American male and at all relevant times a resident of the New York County, in the City and State of New York.

3. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, the City of New York, maintains the New York City Police Department,

a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. At all times hereinafter mentioned, the individually named defendants, DETECTIVE PAUL RIVERA, UNDERCOVER POLICE OFFICER NO. C0084, and P.O.s "JOHN DOE" # 1-10, were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting within the scope of their employment by Defendant, City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting in furtherance of their employment with defendant, City of New York.

FACTS

9. On or about September 30, 2016, at approximately 3:30 P.M., Plaintiff VINCENT CARR was lawfully present near Port Authority Bus Terminal in the County, City, and State of New York.

10. Thereafter, Plaintiff VINCENT CARR and another previously unknown male, Jerome Wilson were arrested and charged with, *inter alia*, Criminal Sale of a Controlled Substance.

11. At no time on September 30, 2016 did Plaintiff Vincent Carr ever sell narcotics to

anyone.

12. At no time on September 30, 2016, did plaintiff VINCENT CARR ever have narcotics on his person.

13. There was no physical evidence connecting Plaintiff VINCENT CARR to any narcotics sale.

14. There was no forensic evidence connecting Plaintiff VINCENT CARR to any narcotics sale.

15. There was no DNA evidence connecting Plaintiff VINCENT CARR to any narcotics sale.

16. The only evidence *whatsoever* was from defendant UC0084 who claimed, falsely, that he observed Plaintiff Vincent Carr sell drugs.

17. In connection with Plaintiff VINCENT CARR unlawful arrest, defendant officers intentionally filled out false and misleading reports, and forwarded these false reports to prosecutors in the New York County District Attorney's office.

18. Throughout the prosecution, Plaintiff's co-arrestee maintained that Plaintiff VINCENT CARR played no role in the alleged crime, and that he did not even know Plaintiff.

19. Further, defendant officers withheld from prosecutors material exculpatory information which would have resulted in the exoneration of Plaintiff VINCENT CARR.

20. As a result of his unlawful arrest, Plaintiff VINCENT CARR spent approximately four (4) months in jail and made numerous court appearances thereafter in order to defend himself against the false charges defendants had filed against him.

21. On April 5, 2018, plaintiff VINCENT CARR was acquitted by a unanimous jury before the Hon. Abraham Clott.

AS AND FOR A FIRST CAUSE OF ACTION
(Violation of the Civil Rights Pursuant to 42 U.S.C. § 1983)

22. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

23. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

24. All of the aforementioned acts deprived Plaintiff VINCENT CARR of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

26. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

27. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

28. The acts complained of deprived Plaintiff VINCENT CARR of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;

- C. To be free from searches not based upon probable cause;
- D. To be free from unwarranted and malicious criminal prosecution; and
- E. To receive equal protection under the law.

29. As a result of the foregoing, Plaintiff VINCENT CARR has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00), and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest Under 42 U.S.C. §1983)

30. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

31. As a result of the aforesaid conduct by defendants, Plaintiff VINCENT CARR was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without probable cause privilege or consent.

32. The aforesaid actions by the defendants constituted a deprivation of the Plaintiff's rights, privileges and/or immunities secured by the Constitution and laws of the United States of America.

33. As a result of the foregoing, Plaintiff VINCENT CARR has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00), and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS FOR A THIRD CAUSE OF ACTION
(Malicious Prosecution Under 42 U.S.C. § 1983)

34. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

35. Defendants misrepresented and falsified evidence before the District Attorney.
36. Defendants did not make a complete and full statement of facts to the District Attorney.
37. Defendants withheld exculpatory evidence from the District Attorney.
38. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff VINCENT CARR.
39. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff VINCENT CARR.
40. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
41. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff VINCENT CARR.
42. Defendants lacked probable cause to continue criminal proceedings against Plaintiff VINCENT CARR.
43. Defendants acted with malice in continuing criminal proceedings against Plaintiff VINCENT CARR.
44. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
45. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in Plaintiff VINCENT CARR's favor on April 5, 2018, when he was acquitted by a jury.
46. As a result of the foregoing, Plaintiff VINCENT CARR has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00), and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A FOURTH CAUSE OF ACTION
(Denial of Constitutional Right to a Fair Trial Under
42 U.S.C. § 1983 Based on Fabricated Evidence)

47. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

48. Defendants created false evidence against Plaintiff VINCENT CARR.

49. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office.

50. In creating false evidence against Plaintiff VINCENT CARR, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

51. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

52. As a result of the foregoing, Plaintiff VINCENT CARR has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A FIFTH CAUSE OF ACTION
(Malicious Abuse of Process Under 42 U.S.C. § 1983)

53. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

54. The aforementioned individual defendants issued legal process to place Plaintiff VINCENT CARR under arrest.

55. The aforementioned individual defendants arrested Plaintiff VINCENT CARR in order to obtain a collateral objective outside the legitimate ends of the legal process.

56. The aforementioned individual defendants acted with intent to do harm to Plaintiff VINCENT CARR, without excuse or justification.

57. As a result of the foregoing, Plaintiff VINCENT CARR sustained, *inter alia*, deprivation of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

58. As a result of the foregoing, Plaintiff VINCENT CARR has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

WHEREFORE, Plaintiff VINCENT CARR demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$2,000,000.00;
- (2) On all causes of action, punitive damages in the amount of \$2,000,000.00; and
- (3) Costs and disbursements of this action, including attorney's fees, and for such other and further relief as to this Court may deem just and proper.

Dated: New York, New York
July 2, 2019

LAW OFFICES OF JON L. NORINSBERG


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